

		The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. The 7/27/26 Case Management Conference is vacated and an OSC re: dismissal for failure to serve is set for 10/19/26 at 8:45am in Dept. C24. That new date should be included in the revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. Moving counsel shall give notice.
307	<i>Lucas vs. Mercedes-Benz USA, LLC</i>	Defendant Mercedes-Benz USA, LLC's ("Defendant") Motion to Compel Arbitration ("Motion") is DENIED without prejudice. Defendant produced a purported lease agreement which plaintiff Adam J. Lucas ("Plaintiff") entered into with non-party Mercedes-Benz of Palm Springs for lease of a motor vehicle. (White Decl. ¶ 2, Ex. 1.) Plaintiff in the opposition contested the lease by pointing out the lease was not properly authenticated. "Authentication of a writing is required before it may be received in evidence." (Evid. Code § 1401.) Defendant cites to <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, for the premise that for purposes of a motion to compel arbitration it is not necessary to follow normal procedures for document authentication. (<i>Id.</i>, at 218.) However, <i>Condee</i> does not discuss the evidentiary burdens of the parties where the existence or authenticity of a contract is contested by the parties; <i>Condee</i> only addresses the initial burden on the motion. Once the lease/arbitration agreement is contested, such as here, Defendant is required to establish by a preponderance of the

evidence the document is valid. (*Espejo v. S. California Permanente Med. Grp.* (2016) 246 Cal. App. 4th 1047, 1060.)

Here, Plaintiff contested the authenticity of the lease, and it becomes incumbent on the Defendant to show by a preponderance of the evidence the lease is the document it is purported to be. Defendant failed to meet the preponderance of the evidence burden. Instead of producing any declaration of a person most knowledgeable, authentication or admission by Plaintiff as to the contents, or some other authenticating evidence/device, defense counsel improperly self-authenticated the lease without providing a basis for how he knows the document is what he states it is. Defendant failed to meet the requirements in the reply, instead relying on orders from other courtrooms in other lawsuits that have found the subject arbitration clause to be sufficient. Those orders do nothing to authenticate the subject lease in the present matter.

The court will not address the third-party beneficiary claims at this time as there is no valid arbitration agreement before the court showing Defendant may compel arbitration.

As Defendant has not produced by a preponderance of the evidence a valid arbitration agreement between the parties, the Motion is denied without prejudice to refile with proper evidence.

Plaintiff's RTJN:

Granted as to Exs. 1-3 pursuant to Evid. Code § 452(d).

Plaintiff's Objections:

		Sustained as to No. 1 (lacks foundation and personal knowledge, lacks authentication) Overruled as to Nos. 2 and 3. Plaintiff shall give notice.
309	<i>Regions Bank vs. BBS Trucking Inc</i>	Before the Court is a claim of exemption by BBS Trucking, Inc. (BBS) in which it claims that funds held in Chase Account XXXX6930 are exempt pursuant to Code of Civil Procedure §704.225. A timely opposition has been filed by judgment creditor Regions Bank successor by merger to Ascentium Capital LLC (Regions). For the reasons set forth herein, the claim of exemption is DENIED. Code Civ. Proc. § 703.580 sets forth the procedure for a hearing on a claim of exemption and provides: “(a) The claim of exemption and notice of opposition to the claim of exemption do not constitute an appearance pursuant to Section 1014. The power of the court over the exemption claimant is limited to determining the claim of exemption. (b) At a hearing under this section, the exemption claimant has the burden of proof. (c) The claim of exemption is deemed controverted by the notice of opposition to the claim of exemption and both shall be received in evidence. If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon. If a claim of exemption asserts that money in a judgment debtor's deposit account is or was necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor as provided in Section 704.225, the court shall review the judgment debtor's financial statement and make findings thereon. If not satisfied, the court may order the hearing continued